



CHAPTER xix.

An Act for empowering the British Gas Light Company Limited to expend further capital and to extend their works at Norwich to extend their limits of supply and for other purposes. A.D. 1918.
[30th July 1918.]

WHEREAS by the British Gas Light Company Limited (Norwich) Acts 1858 to 1903 (in this Act referred to as "the recited Acts") the British Gas Light Company Limited (in this Act called "the Company") were empowered to lay down mains and to manufacture and supply gas in the city and county of Norwich and the liberties and precincts thereof and also in the suburbs of the said city :

And whereas by the recited Acts the capital which the Company were authorised to expend for the purposes of the said Acts was limited to the sum of four hundred and twenty-five thousand pounds of which four hundred and eleven thousand pounds or thereabouts has been expended by the Company for those purposes :

And whereas since the passing of the British Gas Light Company Limited (Norwich) Act 1903 much land has been laid out for building purposes many new streets have been formed and numerous houses manufactories and works have been erected within the said limits and the demand for the supply of gas therein has greatly increased and is steadily increasing :

And whereas in order to meet the increasing demand for the supply of gas within the said limits it is expedient that the Company should be authorised to extend their gasworks upon the additional lands described in the schedule to this Act adjoining the site upon which their present works at or near

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A.D. 1918. to Saint Martin-at-Palace in the county of the city of Norwich
are situate and that the Company should be empowered to
expend further capital for those and other purposes connected
with their undertaking at Norwich:

And whereas it is expedient that the amount chargeable
by the Company as part of the expenses of the management
of their said undertaking should be increased:

And whereas it is expedient to amend the provisions in
the recited Acts contained with reference to the audit of the
accounts of the said undertaking:

And whereas it is expedient that the existing limits of
supply of the Company under the recited Acts should be
extended:

And whereas it is expedient that such other provisions
should be made in relation to the said undertaking as are in
this Act hereinafter contained:

And whereas the objects aforesaid cannot be attained without
the authority of Parliament:

May it therefore please Your Majesty that it may be enacted
and be it enacted by the King's most Excellent Majesty by and
with the advice and consent of the Lords Spiritual and Temporal
and Commons in this present Parliament assembled and by the
authority of the same as follows (that is to say):—

Short and
collective
titles.

1. This Act may be cited as the *British Gas Light Company Limited (Norwich) Act 1918* and the recited Acts and this Act may be cited together as the *British Gas Light Company Limited (Norwich) Acts 1858 to 1918*.

Interpreta-
tion.

2. In this Act the expression "the undertaking" means and includes the gasworks and lands and works connected therewith vested in or constructed or to be constructed by the Company under the authority of the *British Gas Light Company Limited (Norwich) Acts 1858 to 1918*.

Power to
expend fur-
ther capital.

3. Notwithstanding anything contained in the recited Acts the Company may expend for the purposes of the undertaking including the purposes of this Act the sum of two hundred thousand pounds in addition to the sum of four hundred and twenty-five thousand pounds already authorised to be expended under the powers of the recited Acts Provided always that of the said sum of two hundred thousand pounds by this Act autho-

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rised to be further expended the sum of one hundred thousand pounds and no more may be so expended out of the capital stock of the Company and the Company may from time to time borrow on mortgage in respect of such further capital so authorised sums not exceeding in the whole the sum of one hundred thousand pounds Provided further that the profits to be divided by the Company in respect of so much of the additional capital of one hundred thousand pounds as may from time to time be actually expended out of such capital stock shall not exceed seven pounds per centum per annum whether such capital shall be issued as ordinary capital or as preference capital and that the rate of interest to be paid upon any sums so borrowed on mortgage shall not exceed six pounds per centum per annum And the Company shall not have power to convert into shares or stock the said sum of one hundred thousand pounds or any part thereof All moneys to be borrowed for the purposes of this Act shall be borrowed on the best terms obtainable at the time of borrowing the same.

4. The Company shall not without the consent of the mayor aldermen and citizens of the city of Norwich expend any of the capital authorised by this Act after the expiration of a period of seven years from the termination of the present war and the Company shall not without the like consent expend more than one hundred and twenty thousand pounds of such capital at or in connexion with the lands of the Company at Saint Martin-at-Palace in the city of Norwich including the lands described in the schedule to this Act.

5. Except as herein otherwise expressly provided all the provisions of the British Gas Light Company Limited (Norwich) Act 1858 (in this Act called "the Act of 1858") respecting the capital thereby authorised to be expended shall apply to the capital by this Act authorised to be expended.

6.—(1) Notwithstanding anything contained in section 4 of the British Gas Light Company Limited (Norwich) Act 1875 or the proviso to section 5 of the British Gas Light Company Limited (Norwich) Act 1896 (in this Act called "the Act of 1896") or any other provisions of the recited Acts the Company may subject to the provisions of this Act upon the lands firstly thirdly and fourthly described in the schedule to this Act or on any part thereof and if and when the same are acquired by

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A.D. 1918. — them on any of the other lands described in the said schedule or on any part thereof erect maintain alter improve and renew gasworks with all necessary machinery and apparatus and do all such acts as may be proper for making and storing and for supplying gas within the limits of the British Gas Light Company Limited (*Norwich*) Acts 1858 to 1918.

(2) The Company may also upon the said lands—

(A) Work up and convert the residual products arising directly or indirectly from the manufacture of gas by them :

(B) Purchase the residual products arising from the manufacture of gas by other gas undertakers and therewith manufacture other products of the same kind as the Company are manufacturing from their own residual products Provided that the quantity of any residual product so purchased by the Company in any year shall not exceed one-third of the quantity of the like residual product which shall in that year arise directly or indirectly from the manufacture of gas by them :

(c) Purchase from other gas undertakers and elsewhere and use the materials required to work up and convert the residual products so arising from their own manufacture of gas or purchased as aforesaid :

But the Company shall not manufacture chemicals exclusively from raw materials purchased from sources other than gas undertakings or in the manufacture of which the use of residual products produced by the Company or purchased from other gas undertakings is merely subsidiary.

Gasholder
not to be
erected at
SaintMartin-
at-Palace.

7. The Company shall not erect a gasholder on their lands at Saint Martin-at-Palace or on any of the lands described in the schedule to this Act without the consent of the mayor aldermen and citizens of the city of Norwich.

Expenses of
management
at Norwich.

8. Section 6 of the British Gas Light Company Limited (*Norwich*) Act 1903 (Repeal of section 9 of Act of 1875) is hereby repealed and the Company may charge as part of their expenses of the management of their undertaking at Norwich the due proportion of that undertaking of the expenses of the chief office of the Company in London including directors' and

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auditors' fees and in ascertaining such proportion in each year or half-year the Company shall take into consideration equally— A.D. 1918.
—

(A) The quantity of gas sold by the several undertakings of the Company in such year or half-year; and

(B) The total amount of capital expended on the several undertakings of the Company at the commencement of such year or half-year.

9.—(1) Nothing in the recited Acts or this Act shall be deemed to require the Company to hold half-yearly meetings of the Company and the provisions of sections 19 to 22 inclusive of the Act of 1858 as amended by section 7 of the Act of 1896 shall not be deemed to empower or require the auditor referred to in those provisions to audit or examine the Company's accounts more than once a year nor to require the Company to deliver to such auditor any balance sheet showing the accounts of the Company in relation to the execution of the recited Acts and this Act other than a balance sheet showing such accounts for each year up to the thirtieth day of June and as from the first day of July one thousand nine hundred and eighteen the provisions of the recited Acts shall be read and construed accordingly. Audit of accounts to be made yearly.

(2) Such last-mentioned balance sheet shall be delivered by the Company to such auditor ten days at least before the ensuing ordinary meeting of the Company at which such balance sheet is to be produced.

10.—(1) The provisions of section 22 of the Act of 1858 shall be deemed to empower the auditor therein referred to to examine the accounts of the Company and the books papers and writings relating thereto and the clerks or servants of the Company at all reasonable times. Provisions as to auditor.

(2) Section 7 of the Act of 1896 in so far as the same relates to the remuneration of the said auditor is hereby repealed and the remuneration of any such auditor shall be from time to time fixed by the mayor aldermen and citizens of the city of Norwich and the Company shall contribute towards such remuneration the sum of sixty guineas per annum.

11. The Company may contract with any local authority company or persons within or beyond the Company's limits of Sale of gas in bulk.

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A.D. 1918. — supply for the time being (but only beyond such limits with the consent in writing of any local authority and of any company or persons supplying gas under parliamentary powers within the district within which the supply is to be given) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in each case seven years from the making of the contract as shall be agreed upon.

Extension of
limits of
supply.

12.—(1) From and after the passing of this Act the limits of the Company under the recited Acts for the supply of gas shall include in addition to their existing limits of supply under those Acts the parishes of Brundall Blofield Great Plumstead Little Plumstead Postwick and Witton in the rural district of Blofield Beeston Saint Andrew Crostwick Drayton Frettenham Hainford Horsford Horsham Saint Faith's and Newton Saint Faith's Horstead with Stanninghall Rackheath Salhouse Spixworth and Wroxham in the rural district of Saint Faith's Belaugh Coltishall and Great Hautbois in the rural district of Aylsham Colney and Cringleford in the rural district of Henstead Bowthorpe and Costessey in the rural district of Forehoe and Hoveton Saint John in the rural district of Smallburgh and the Company shall have and may exercise within the limits of supply as so extended all and the like powers privileges and authorities and shall be subject to all and the like duties liabilities and obligations as they may have and be subject to within the said existing limits of supply of the Company.

(2) The limits of supply as extended by this Act are coloured red and blue on the map signed in triplicate by the Right Honourable John Henry Whitley the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred one of which maps has been deposited in the office of the Clerk of the Parliaments House of Lords one in the Private Bill Office of the House of Commons and one in the principal office of the Company If there is any discrepancy between the description contained in this section of the limits of supply as so extended and the maps signed as aforesaid the latter shall prevail and copies of the said map deposited at the principal office of the Company certified by the secretary of the Company to be true copies shall be received in all courts of justice and proceedings as *primâ facie* evidence of the contents of such map.

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13.—(1) Section 25 (As to the price to be charged for gas) of the Act of 1858 is hereby repealed. A.D. 1918.
Price of gas.

(2) The Company may charge for gas supplied by them within the city and the county of the city of Norwich and the precincts of the Shire Hall at Norwich and the parish of Cringleford a price not exceeding four shillings and sixpence per thousand cubic feet and for gas supplied by them within the remainder of the limits of supply of the Company as extended by this Act a price not exceeding five shillings and sixpence per thousand cubic feet.

(3) The price charged by the Company for gas supplied to consumers in any parish (except the parish of Cringleford) added by this Act to the limits of the Company for the supply of gas shall be at all times more by at least sixpence than the price for the time being charged by the Company for gas supplied by meter under like circumstances to consumers within the city of Norwich.

14. Notwithstanding anything in this Act contained the following provisions for the protection of the Great Eastern Railway Company (in this section referred to as “the railway company”) shall unless otherwise agreed in writing between the parties be in force and have effect:— For protec-
tion of Great
Eastern
Railway
Company.

- (1) In laying down and in executing any works in connexion with the laying down or the repair and renewal of any mains pipes or other works which the Company may by this Act be authorised to lay down and execute upon across over under or in any way affecting the railways lands or property belonging to the railway company or the bridges approaches viaducts stations or other works or any level crossings of or repairable by the railway company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the railway company and according to plans and sections to be previously submitted to and reasonably approved by him and in all things by and at the expense of the Company who shall also restore and make good the roads over any such bridges level crossings and approaches which the railway company is or may be liable to maintain and which may be

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disturbed or interfered with by or owing to any operations of the Company Provided always that if such principal engineer shall not approve or disapprove any plan or section so submitted to him within fourteen days after such submission or shall refuse or neglect to superintend the work the Company may proceed with the same without the approval of the said plan or section and without the superintendence of the said principal engineer :

(2) All such works matters and things shall be constructed executed and done so as not to cause any injury to such railways bridges level crossings approaches viaducts stations works lands or property or interruption to the passage or conduct of the traffic over such railways or such stations and if any injury or interruption shall arise from or be in any way owing to any of the acts operations matters and things aforesaid or the bursting leakage or failure of any such mains pipes or works under or near to any such bridge level crossing or other property the Company shall make compensation in respect thereof to the railway company the amount of such compensation to be determined by arbitration in manner hereinafter provided :

(3) Any difference which may arise between the railway company and the Company under the provisions of this section shall be settled by arbitration by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of the railway company and the Company or of either of them after notice to the other and the provisions of the Arbitration Act 1889 shall apply to such arbitration.

For protection of Midland and Great Northern Railways Joint Committee.

15. In executing and maintaining the works authorised by the British Gas Light Company Limited (*Norwich*) Acts 1858 to 1918 where the same cross or will cross over or under or otherwise affect any railway or any part of the works or property of the Midland and Great Northern Railways Joint Committee (in this section referred to as "the committee") the Company shall (save so far as may be otherwise agreed between

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the committee and the Company) be subject to the following conditions :— A.D. 1918.

- (1) All such works shall be executed and maintained under the superintendence (if the same be given) and to the reasonable satisfaction of the principal engineer of the committee and according to plans and drawings to be previously submitted to and reasonably approved by him or in case of difference by an arbitrator appointed in pursuance of this section. Provided that if for fourteen days after such plans and drawings shall have been submitted to the said engineer he shall fail to give notice to the Company of his objections thereto he shall be deemed to have approved thereof :
- (2) If within fourteen days after the receipt of any such plans and drawings the committee give to the Company notice that they themselves desire to execute any part of the work (other than the actual laying down of the mains which shall be done by the Company) which will cross over or under any railway or work belonging to them the committee may themselves execute such part of the work and recover the reasonable costs thereof from the Company but if for fourteen days after any such notice is given by the committee to the Company of the desire of the committee to execute any such work the committee neglect to commence the same or if after having commenced the same the committee neglect to proceed with the same with reasonable diligence the Company may forthwith themselves execute the same :
- (3) All works which the Company may execute under this section shall be so constructed as to cause no injury to the railways works and property of the committee or interruption to the passage or conduct of traffic over the same and if in consequence of the execution maintenance or failure of such works any injury be caused to the said railways works and property or any interruption be caused to the traffic the Company shall make full compensation to the committee in respect of such injury or interruption the amount of

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such compensation unless agreed upon to be determined by arbitration as hereinafter provided:

- (4) The Company shall bear and on demand pay to the committee the reasonable expense of the employment by the committee during the execution or maintenance of the work affecting their railways of a sufficient number of inspectors watchmen and signalmen to be appointed by the committee for watching and signalling the same with reference to and during the execution or maintenance of any such work of the Company and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Company or their contractors:
- (5) Any additional expense which the committee may reasonably and properly incur in effecting under any powers of the committee existing at the date of the passing of this Act any repair renewal widening alteration or extension of their railway bridges and works by reason of the existence of any mains or pipes of the Company laid under the powers of this Act across over or under such bridges or works shall be paid by the Company:
- (6) Any dispute or difference which may arise between the committee and the Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed (in default of agreement) by the President of the Institution of Civil Engineers on the application of the committee or the Company and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

Copy of Act
to be registered.

16. The Company shall deliver to the registrar of joint stock companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company

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who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily. A.D. 1918.

There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies (Consolidation) Act 1908 on registration of any document other than the memorandum or the abstract required to be filed with the registrar by a receiver or manager or the statement required to be sent to the registrar by the liquidator in a winding-up in England.

17. The Company shall not under the powers of this or any previous Act raise or borrow any money (except for the payment of the costs charges and expenses referred to in the section of this Act whereof the marginal note is "Costs of Act") during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained. Consent of Treasury to raising of money.

18. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise relating thereto shall be paid by the Company. Costs of Act.

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The SCHEDULE referred to in the foregoing Act.

Firstly A certain piece of land situate in the parish of Saint Martin-at-Palace in the county of the city of Norwich containing two roods and twenty-four perches or thereabouts and belonging or reputed to belong to and in the occupation of the Company and on the westerly side of and adjoining the existing gasworks of the Company bounded on the north and north-west by the River Wensum on the south partly by a lane or way called World's End Lane and partly by the said gasworks on the east by the said gasworks and on the west partly by the passageway leading from Saint Martin-at-Palace Plain to property in the occupation of Albert Edward Barber and partly by the last-mentioned property.

Secondly A piece of land situate in the said parish containing two roods and twenty-seven perches or thereabouts on the west side of and adjoining the lands firstly hereinbefore described bounded on the north by the River Wensum on the south by Saint Martin-at-Palace Plain on the east by the said lands firstly hereinbefore described and on the west by Whitefriars Street.

Thirdly A piece of land situate in the said parish containing thirty-seven perches or thereabouts belonging or reputed to belong to and in the occupation of the Company on the south side of and adjoining the Company's said gasworks bounded on the north and west by the said gasworks on the east by property being a timber yard and premises held therewith belonging or reputed to belong to the trustees of the Great Hospital and on the south in part by property known as the Tabernacle and in other part by World's End Lane.

Fourthly A piece of land situate in the said parish containing two roods twenty-four perches or thereabouts belonging or reputed to belong to the Company on the south side of and adjoining the Company's said gasworks and the lands firstly and thirdly hereinbefore described bounded on the north by the said gasworks and the said lands firstly and thirdly hereinbefore described on the south by Bishopgate Street on the east by the said property known as the Tabernacle and a dwelling-house adjoining thereto and in the occupation of Leslie Saul and on the west by Saint Martin-at-Palace Plain.

Fifthly A piece of land situate in the said parish containing thirty-two perches or thereabouts on the east side of and adjoining

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the lands fourthly hereinbefore described bounded on the north by A.D. 1918.
the lands thirdly hereinbefore described on the south by Bishopgate
Street on the east by the said timber yard and premises held there-
with and on the west by the lands fourthly hereinbefore described.

Sixthly A piece of land situate in the said parish containing
one acre and twenty-five perches or thereabouts on the south-west
side of and adjoining the River Wensum bounded on the north-east
by the said river on the south and east by the gardens of the Great
Hospital and on the west partly by the said gasworks of the Company
partly by the lands thirdly and fifthly hereinbefore described and
partly by Bishopgate Street.

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